

Whangarei District Council Meeting

Agenda

Date: Wednesday, 28 August, 2024

Time: 9:00 am

Location: Civic Centre, Te Iwitihi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

1. Karakia/Prayer
2. Declarations of Interest / Take Whaipānga
3. Apologies / Kore Tae Mai
4. Decision Reports / Whakatau Rīpoata

4.1 Dog Management Policy and Bylaw - Deliberations

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5. Closure of Meeting / Te katinga o te Hui

Recommendations contained in the Council agenda may not be the
final decision of Council.

Please refer to Council minutes for final resolution.

4.1 Dog Management Policy and Bylaw - Deliberations

Meeting: Whangarei District Council
Date of meeting: 28 August 2024
Reporting officer: Will McNab (Strategic Planner – Bylaw)

1 Purpose / Te Kaupapa

To deliberate on matters raised during statutory consultation on the proposed amendments to the Dog Management Policy (the Policy) and the new Dog Control Bylaw (the Bylaw) and make decisions to inform the final proposed amendments to the Policy and the final form of the Bylaw.

2 Recommendations / Whakataunga

That Council:

1. Approves the following dog access rules, as provided in section 4.1 of this report, to be included in the final Dog Management Policy (the Policy):
 - a. City centre: Option 1 to retain the proposed default on-leash rule;
 - b. Hikurangi: Option 1 to allow dogs off a leash in the open grass area immediately south of the transfer station;
 - c. Marsden Bay: Option 1 to allow dogs on a leash on the beach and foreshore eastward to the groyne;
 - d. Panorama Drive Reserve (upper): Option 1 to allow dogs off a leash in the open grass area southeast of the playground;
 - e. Ruakākā Beach: Option 1 to allow dogs off a leash on the beach and foreshore from the Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk;
 - f. Tip Road northwards (Uretiti Beach): Option 1 to allow dogs off a leash on the beach and foreshore from a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road;
 - g. Urquharts Bay: Option 1 to reinstate the default beach and foreshore rule;
 - h. Whangaruru/Bland Bay: Option 1 to prohibit dogs on the beach and foreshore from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; and from Waitapu Rock eastward to the western end of Tuparehuia Bay;
2. Agrees that, with the exception of the changes proposed in 1 above, no further changes are required to the dog access rules as provided in Schedules 1 and 2 of the Policy;
3. Approves the summer season rule as provided in clause 2.6 of Schedule 1 of the Policy;

4. Approves the following recommendations for the Policy and Dog Control Bylaw (the Bylaw), as provided in sections 4.2 and 4.3 of this report:
 - a. Policy topic 1: Option 1 (no change to proposal);
 - b. Policy topic 2: Option 1 to approve the proposed changes to the Policy as provided in track changes in Attachment 1;
 - c. Bylaw topic 1: Option 1 (no change to proposal);
 - d. Bylaw topic 2: Option 1 to approve the proposed changes to the Bylaw as provided in track changes in Attachment 2;
5. Agrees that, with the exception of the changes proposed in 4 above, no further changes are required to the Policy and Bylaw.

3 Background / Horopaki

Council began reviewing the existing Dog Management Policy and Dog Management Bylaw in early 2023. The public and key stakeholders were invited to give their views during two separate rounds of engagement.

First, early engagement in mid-2023 sought feedback on the existing rules. This feedback then informed new rules, which were developed into a new draft Dog Management Policy (the Policy, Attachment 1) and Dog Control Bylaw (the Bylaw, Attachment 2) across a series of Council briefings.¹

Second, Council consulted with the public on the proposed Policy and Bylaw, as required under section 83 of the Local Government Act 2002 (LGA), during May and June 2024.² A hearing was held on 3 July 2024 in Council Chambers, where 21 speakers presented their views in person. At the close of the consultation period, the proposal had received 804 items of feedback.³

At a Council Briefing on 23 July 2024, Elected Members provided direction on several of the more salient and potentially contentious issues to arise during the consultation period.⁴ That feedback has informed the recommendations in this report.

4 Discussion / Whakawhiti kōrero

Staff have analysed submissions received during the consultation period, a summary of which is provided in Attachment 3.

The attached Policy and Bylaw show the recommended options in track changes where applicable.

Staff have sought legal advice and incorporated this advice into the wording of Policy and Bylaw. This has not resulted in any substantive amendments to the intent of the Policy or Bylaw or their underlying entitlements and obligations.

¹ See agenda report for the Council Briefing on 29 November 2023 [here](#) and the report for the Briefing on 8 February 2024 [here](#).

² See agenda report for the Council Meeting on 24 April 2024 [here](#). The published Statement of Proposal can be downloaded [here](#).

³ See agenda report for the Hearing [here](#). The report contains the full record of submissions received on the proposal during the consultation period.

⁴ See agenda report for the Council Briefing on 23 July 2024 [here](#) and the minutes [here](#).

4.1 Dog access rules

The dog access rules in Schedules 1 and 2 of the Policy attracted 774 submission points. Of these, 662 related to a rule in a specific location; another 112 related to access rules more generally.

The tables in sections 4.1.1 to 4.1.9 below show the proposed rule consulted on in eight locations, two options to respond to issues raised during consultation and, where applicable, a map of the recommended option.

4.1.1 City centre

The proposal to allow dogs on-leash in the city centre, including Laurie Hall Park, attracted 41 submission points during statutory consultation, broken down as follows:

- 24 (59%) opposed
- 17 (41%) in favour

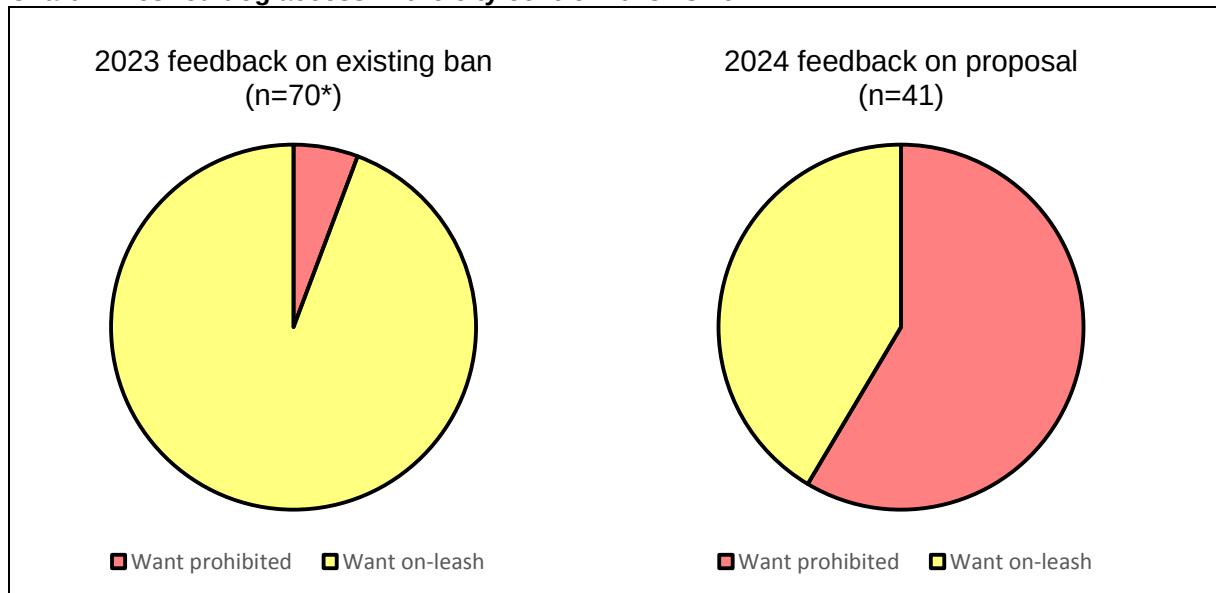
Much of the opposition to the proposal cited public safety fears (18 submissions) and dog faeces (6). Support for the proposal tended to mention the inconvenience of the existing ban (8 submissions) and a desire to support central city businesses (5).

The results of the 2024 consultation contrast strongly with those of the 2023 engagement on the existing central city prohibition, which received 70 responses:

- 66 (94%) wanted dogs to be allowed on-leash in the city centre
- 4 (6%) supported retaining the existing ban

Both rounds of public engagement used the same channels: online form, interactive map, email.

Chart 1: Desired dog access in the city centre: 2023 vs 2024



* Excludes survey of 37 central city businesses

In addition, last year staff surveyed a mix of employees and owners of 37 central city businesses, of which 29 (78%) were in favour of dogs being allowed on-leash in the city centre, five (14%) were neutral and three (8%) were opposed. Dog faeces were the main concern cited by the businesses surveyed.

City centre	
Proposed rule(s)	Default on-leash
Option 1 (recommended)	Retain proposed default on-leash rule in the city centre
Option 2	Return to status quo dog ban in the city centre
Staff comment	Total feedback across two rounds of engagement overwhelmingly favoured the removal of the existing dog prohibition.

4.1.2 Hikurangi

All six submissions on the proposed rules at Hikurangi sought a greater degree of dog access than that provided under the proposal, which did not provide any off-leash exercise opportunities in Hikurangi. Several submitters cited dogs' need for open green space to be exercised.

With more than a hectare of unoccupied open green space, the former landfill site south of Lake Waro provides a suitable alternative for off-leash exercise in Hikurangi. The site is appropriately capped and the area is mowed every three to four weeks.

Hikurangi former landfill site	
Proposed rule(s)	Default on-leash
Option 1 (recommended)	<i>Dogs are allowed under control off a leash on the following reserves/parks:</i> - <i>Hikurangi - open grass area immediately south of transfer station</i>
Option 2	Retain proposed default on-leash rule
Map of option 1	
Key	Green = off-leash

4.1.3 Marsden Bay beach and foreshore

Marsden Bay was the subject of nine submission points, all of which opposed the existing prohibition in favour of varying degrees of dog access. At least four submitters, including local dog owners, reported being unaware of the existing prohibition in the Bay.

The Patuharakeke Te Iwi Trust do not support dogs being allowed in the area, citing historical and ongoing wāhi tūpuna and mātaītai of cultural and ecological significance.

A biodiversity expert and the CoastCare Coordinator at Northland Regional Council both support allowing dogs on-leash on the beach and foreshore as a practical solution that fosters compliance, provided improved signage is put in place.

Council staff agree that, notwithstanding the significance of the area to tangata whenua, allowing dogs on-leash on the beach and foreshore would strike a pragmatic balance that would spare the areas with the greatest ecological values and do more to uphold the integrity of the rules.

Marsden Bay beach and foreshore	
Proposed rule(s)	Prohibited
Option 1 (recommended)	<i>Dogs are allowed under control on a leash:</i> - Marsden Bay - beach and foreshore eastward to groyne
Option 2	Retain proposed prohibition
Map of option 1	
Key	Yellow = on-leash; red = prohibited

4.1.4 Panorama Drive Reserve (upper)

The upper of the two Panorama Drive Reserves in Parihaka received one submission requesting the retention of the existing off-leash rule there. Following a site visit, staff have assessed the area southeast of the playground to be sufficiently large and open for this purpose.

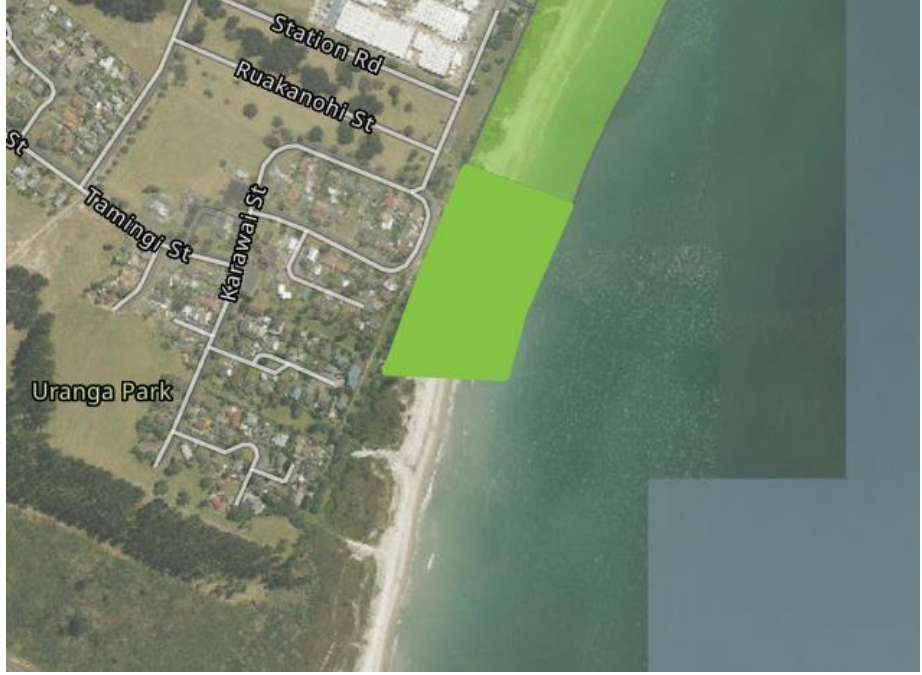
Subject to Council's decision, the Parks team will plant a small row of trees to provide some visual separation between the off-leash area and the playground.

Panorama Drive Reserve (upper)	
Proposed rule(s)	Default on-leash
Option 1 (recommended)	<i>Dogs are allowed under control off a leash on the following reserves/parks:</i> - <i>Panorama Drive Reserve (upper) - open grass area southeast of playground</i>
Option 2	Retain proposed default on-leash rule
Map of option 1	
Key	Green = off-leash; yellow = on-leash; red = prohibited

4.1.5 Ruakākā Beach at Taotahi Walk

The proposal shifted northwards the southern boundary of the year-round off-leash stretch of beach and foreshore at Ruakākā to encourage beach access north of the village through the kissing gate by the carpark at the eastern end of Ruakanohi Street.

One submitter spoke of difficulty accessing the beach through this gate due to the steep gradient of the dune exacerbated by erosion. Extending the year-round off-leash rule to Taotahi Walk would be a return to the status quo, which has been in place since at least 2013.

Ruakākā Beach at Taotahi Walk	
Proposed rule(s)	<i>Dogs are allowed under control off a leash—</i> - <i>From Mair Road beach access southward to beach access gate at carpark at intersection of Te Kamo St and Ruakanohi St</i>
Option 1 (recommended)	<i>Dogs are allowed under control off a leash—</i> - <i>From Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk</i>
Option 2	Retain proposed default beach and foreshore rule
Map of option 1	
Key	Green = off-leash (proposed addition to year-round off-leash rule in bold green)

4.1.6 Tip Road northwards (Uretiti Beach)

The proposed imposition of a summer daytime ban on the beach and foreshore north of Tip Road attracted 422 submission points, of which 421 (99.8%) opposed the proposal.

Tip Road northwards (Uretiti Beach)	
Proposed rule(s)	Default beach and foreshore rule
Option 1 (recommended)	<i>Dogs are allowed under control off a leash—</i> - <i>From a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road</i>
Option 2	Retain proposed default beach and foreshore rule
Map of option 1	
Key	Green = off-leash; red = prohibited

4.1.7 Urquharts Bay beach and foreshore

The proposal to lift the summer daytime ban at Urquharts Bay received negative feedback from six submitters, citing concern at safety and carparking capacity during the summer peak as well as at the threat dogs pose to native fauna in the nearby Bream Head/Te Whara Scenic Reserve.

Under the recently adopted Parua Bay Placemaking Plan, Council has committed to investigate, within the next three years, options to provide off-leash dog areas in the Whangārei Heads.

Urquharts Bay beach and foreshore	
Proposed rule(s)	Off-leash
Option 1 (recommended)	Reinstate the default beach and foreshore rule
Option 2	Retain proposed year-round off-leash dog access

4.1.8 Whangaruru/Bland Bay

Under the operative Policy, dogs are prohibited across the entire length of Bland Bay beach.

The proposal sought to allow greater dog access in Bland Bay. Most, but not all, of 14 submissions favoured this approach.

The Department of Conservation submitted against the easing of dog access in the area due to the presence of endangered and recovering fauna.

Council has also become aware of koiwi (human remains) being exposed by coastal erosion along certain parts of Bland Bay, other wāhi tapu sites in Tuparehuia Bay and the existence of a Māori Oyster Reserve in Sandy Bay and Tuparehuia Bay declared under the Fisheries Act 1983.

Given the weight of public feedback seeking more dog access on Bland Bay beach, the location and extent of Te Paihere o Kaharau (historical burial ground) in Bland Bay, the long stretches of whenua Māori along Tuparehuia Bay and Sandy Bay and the inclusion of these bays in a gazetted Māori Oyster Reserve, staff believe that a more appropriate balance can be achieved by—

1. Extending the prohibition at the northern end of Bland Bay beach to cover the beach and foreshore directly adjacent to Te Paihere o Kaharau;
2. Extending the prohibition around the Whangaruru North headland to include Sandy Bay and Tuparehuia Bay.

The proposal would still allow for a greater degree of dog access on Bland Bay beach and on Logan Nicks Reserve than exists under the operative Policy, while at the same time giving effect to the various competing demands for dog access in the area.

Whangaruru/Bland Bay beach and foreshore areas	
Proposed rule(s)	<i>Dogs are prohibited—</i> - from the northern end of Bland Bay southward to the Whakaturia Ave access point; - from Waitapu Rock eastward to the northern end of Te Parapara Bay. <i>Dogs are allowed under control on a leash, subject to a summer season rule—</i> - From access point at end of Whakaturia Avenue southeastward to Waitapu Rock.
Option 1 (recommended)	<i>Dogs are prohibited—</i> - from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; - from Waitapu Rock eastward to the western end of Tuparehuia Bay. <i>Dogs are allowed under control on a leash, subject to a summer season rule—</i> - From a line northeast of the northernmost point of Logan Nicks Reserve southeastward to Waitapu Rock.
Option 2	Retain proposed rules in Whangaruru/Bland Bay
Map of option 1	

Key	Green/yellow = off-leash with summer rule; yellow/red = on-leash with summer rule; red = prohibited (proposed additions to beach and foreshore prohibitions in bold red)
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4.1.9 Other feedback on dog access rules

Summer season rule	
Proposed rule(s)	Summer restrictions (prohibition for default beaches) are in place 9am-5pm from 20 December to 31 January
Option 1 (recommended)	Retain proposed summer season rule
Option 2	Reduce the operative hours of the summer season rule from 9am-5pm to 10am-5pm
Staff comment	Option 2 was requested by 135 submitters in a series of pro-forma submissions on Bream Bay. A further 25 submitters requested a greater degree of dog access to beaches during summer in general. Three submitters called for less summer beach access. Staff estimate that replacing the existing stock of coastal signs to reflect a new summer rule would cost tens of thousands of dollars. Given the diversity of the existing stock of coastal signs, even placing stickers over the existing summer rule on all coastal signs would incur a considerable unbudgeted cost and/or stretch staff resources. Further, with the exception of the Whangārei Heads, the proposal provides for more beach access over summer in all major coastal areas.

Other feedback on dog access rules	
Proposed rule(s)	N/A
Option 1 (recommended)	No further change to Schedules 1 or 2 of the Policy
Option 2	That staff report back on options for further amendments to Schedules 1 and 2 of the Policy following direction from Council at this meeting.
Staff comment	See high-level summary of submission points on the proposed dog access rules in Attachment 3. Staff note the proposal generally provides for more dog access than the status quo, although this is difficult to quantify because of the vague nature of the operative rules.

4.2 Dog Management Policy

In total 45 submission points were received on the proposed Dog Management Policy, outside of the dog access rule provisions discussed in section 4.1 of this report. Of these, 21 were in support of the proposed amendments to the Policy.

Attachment 3 provides a detailed overview of all submission points received on the Policy. This section provides a summary of the issues together with staff comments and recommendations based on the analysis provided in the attachment.

Policy topic 1: Clause 5: Fees and charges	
Summary of feedback	24 submissions received, including requests for discounts for responsible dog owners and Gold Card holders
Option 1 (recommended)	No change to the proposed amended Policy.
Option 2	That staff report back on options for further amendments to the Policy following direction from Council at this meeting.
Staff comment	Council is not precluded from providing additional discounts for registration fees through the annual fee setting process.

Policy topic 2: All other feedback on the proposed Policy	
Summary of feedback	See Attachment 3.
Option 1 (recommended)	Approve the proposed changes to the Policy as provided in track changes in Attachment 1 in response to public feedback.
Option 2	That staff report back on options for further amendments to the Policy following direction from Council at this meeting.
Staff comment	Most of the other feedback can either be addressed through additional or enhanced related information content in the Policy (including maps), is provided for under the Act or can be addressed through minor rewording of clauses.

4.3 Dog Control Bylaw

In total 36 submission points were received on the Dog Control Bylaw (the Bylaw). Of these, 17 were in support of the proposed new Bylaw, with one submitter stating their opposition in general.

Attachment X provides a detailed overview of all of the submission points received on the Bylaw. This section provides a summary of the issues together with staff comments and recommendations based on the analysis provided in the Attachment.

Bylaw topic 1: Request for inclusion of a limit to the number of dogs per property	
Summary of feedback	Four submitters requested a limit on the number of dogs on properties. The matter of a potential limit on the number of dogs permissible at a property was also raised during the engagement undertaken in 2023 and therefore appears to be of considerable interest to the community.
Option 1 (recommended)	No change to the proposed Bylaw.
Option 2	That staff report back on options for further amendments to the Bylaw following direction from Council at this meeting.
Staff comment	Staff consider this is a challenging provision to administer and enforce. Of all the submissions received between the two engagement processes, there was little agreement on what the maximum number of dogs should be or in what locations such limitations should apply. This type of provisions would also likely negatively impact on responsible dog owners who own multiple dogs but whose dogs do not cause any issues or concerns in their neighbourhood.

Bylaw topic 2: All other feedback on the proposed Dog [Control] Bylaw	
Summary of feedback	See Attachment 3.
Option 1 (recommended)	Approve the proposed changes to the Bylaw as provided in track changes in Attachment 2 in response to public feedback.
Option 2	That staff report back on options for further amendments to the Bylaw following direction from Council at this meeting.
Staff comment	Most of the other feedback either can be addressed through additional or enhanced related information content in the Bylaw, is provided for under the Act or can be addressed through minor rewording of clauses.

4.4 Financial/budget considerations

Nil.

4.5 Policy and planning implications

Nil.

4.6 Options

See above.

4.7 Risks

Nil.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this agenda report do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed via publication of this report on Council's website.

Council has consulted with the community on the proposed Policy and Bylaw following the requirements of section 83 of the Local Government Act 2002 (LGA). The community was notified of the consultation via public notice in print media, social media and a Council News story. In addition, staff sent notification of the proposal to all dog owners in Council's dogs register, as required by section 10(2) of the Dog Control Act 1996.

The Have Your Say webpage went live on 1 May 2024. Written submissions were invited through multiple channels until 14 June 2024. A hearing in Council Chambers met the specific requirement under section 83(1)(d) of the LGA for Council to offer the opportunity for spoken interaction with submitters.

6 Attachments / Ngā Tāpiritanga

Attachment 1 - Draft Dog Management Policy showing track changes

Attachment 2 - Draft Dog Control Bylaw showing track changes

Attachment 3 - Analysis of submissions

Whangarei District Council

Dog Management Policy 2024

draft

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Introduction

1. Purpose

- 1.1. To provide for the needs of dogs and their owners in a way that also protects the community and wildlife.
- 1.2. To achieve this purpose, the Policy aims to:
 - a. minimise the problems caused by dogs; and
 - b. protect dogs from harm and ensure their welfare; and
 - c. provide opportunities for owners to take their dogs into public places.

2. Interpretation

- 2.1. Any word used in this Policy that is not included in clause 2.2 below and which is defined in section 2 of the Dog Control Act 1996, has for the purposes of this Policy, the same meaning as in section 2 of the Act.

- 2.2. In this Policy, unless the context otherwise requires —

Access way	has the meaning given by section 315 of the Local Government Act 1974 .
Act	means the Dog Control Act 1996 .
Authorised Officer	means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.
Beach	means and includes the following: d. the foreshore as defined by section 2 of the Resource Management Act 1991 e. the inter-tidal zone above mean low water springs f. any adjacent area that can reasonably be considered part of the beach environment including areas of sand, pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.
Bylaw	Means the Whangarei District Council Dog Control Bylaw 2024.
Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, including any person or committee delegated to act on its behalf in relation to this Policy.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
District	Means the area administered by Council as defined in Part 2 of Schedule 2 of the Local Government Act 2002
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .

Foreshore	has the meaning given by section 2 of the Resource Management Act 1991 .
Menacing dog	means a dog that has been classified as a menacing dog under section 33A of the Act.
Neutered dog	has the meaning given by section 2 of the Act.
Owner	has the meaning given by section 2 of the Act.
Park/Reserve	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
Playground	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark.
Policy	means this policy, being the Whangarei District Council Dog Management Policy 2024.
Premise and Premises	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
Private way	has the meaning given by section 315 of the Local Government Act 1974 .
Public place	has the meaning given by section 2 the Act.
Road	has the meaning given by section 315 of the Local Government Act 1974 except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: g. a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or h. where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway, footpath or cycle track that is closest to the centre of the park.
Sports field	means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome.
Skatepark	means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pump tracks.
Service lane	has the meaning given by section 315 of the Local Government Act 1974 .
Working dog	has the meaning given by section 2 of the Act.

3. Related information

- 3.1. **Related information** and links to webpages do not form part of this Policy and may be inserted, changed or removed without any formality.

4. Relationship between the Policy and the Bylaw

- 4.1. Under the Dog Control Act 1996 (the Act), Council is required to develop a Policy on Dogs (the Policy) and may make a bylaw (the Bylaw) to implement the Policy. A bylaw cannot be inconsistent with a policy. Dog owners who do not comply with the Act or the Bylaw may be subject to enforcement action.

The broad purpose of the Act is to:

- a. provide for the care and control of dogs; and
- b. address issues relating to damage caused by dogs.

The purpose of the Policy and Bylaw is to provide for matters specified in the Act that must be included, as well as a range of additional matters that Council may include if deemed necessary or appropriate.

The Policy and Bylaw do not duplicate any provisions of the Act, but align with it to provide a comprehensive framework of rules for the District.

However, to assist in understanding, this Policy contains related information and links to webpages regarding relevant provisions of the Act or to assist in other ways. This information does not form part of this Policy and may be inserted, changed or removed without any formality.

The approaches and requirements of the Policy and Bylaw can be summarised as follows:

Document	Purpose	What the document covers
Dog Management Policy	Required to have regard to: • minimising danger, distress and nuisance • restricting uncontrolled access to public places that are frequented by children • the use of streets and public amenities without fear of attack or intimidation by dogs • the exercise and recreational needs of dogs and their owners.	• Nature and application of the Bylaw. • Fees and charges relating to dogs. • General dog access rules, including default dog access rules. • Specific areas where dogs are prohibited, either at all times or during specific dates and times. • Specific areas where dogs must be on-leash, either at all times or during specific dates and times. • Specific areas where dogs are allowed off-leash. • Specific designated dog exercise areas. • Requirements for menacing dogs. • Council's and dog owners' obligations.

Dog Control Bylaw	To provide adequate opportunities to fulfil the exercise, recreational and socialisation needs of dogs and their owners while minimising any danger, distress or nuisance caused by dogs.	• Clauses to give effect to the dog access rules contained in the Policy for enforcement purposes. • Temporary changes to the dog access rules. • Requirements to pick up dog faeces. • Rules for dogs on heat and dogs with infectious diseases. • Requirements to neuter uncontrolled dogs. • Requests to review a menacing dog classification. • Enforcement, offences and penalties.
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DRAFT

Related information about the Dog Management Policy

Section 10(5)(a) of the Act requires Council to identify any land within the District that is included in a controlled dog area or open dog area under section 26SZ of the Conservation Act 1987.

This relates to land that is under the control of the Department of Conservation and where the Department has by gazette notice declared the land to be a controlled dog area or an open dog area. This information is provided in [Appendix 1](#) of this Policy.

5. Fees and charges relating to dogs

- 5.1. Section [37](#) of the Act sets out what matters Council may set fees for in relation to its dog control activities. Council's fees and charges are reviewed through the Long Term Plan and Annual Plan processes under the [Local Government Act 2002](#).
- 5.2. Dog registration fees will be set through the processes detailed in clause 5.1 and in accordance with the following provisions—
 - a. fees for neutered dogs will be set at a lower rate than the standard registration fee;
 - b. fees for working dogs (excluding disability assist dogs) will be set at a lower rate than the standard registration fee;
 - c. fees for disability assist dogs as defined in [Schedule 5](#) of the Act will not be charged;
 - d. fees for the first registration of puppies will be charged on a pro-rata monthly rate.

Related information about fees and charges for dogs

Section [32](#) of the Act requires fees for dangerous dogs to be set at 150% of the standard dog registration fee.

Registration and enforcement

6. What will Whangarei District Council do?

- 6.1. Council will provide registration administration services including—
 - a. maintaining a record of all dogs registered in the District, including those classified as dangerous or menacing;
 - b. maintaining a record of probationary and disqualified owners;
 - c. informing and educating dog owners through the registration process;
 - d. following up on non-registered dogs and non-compliance with the Bylaw or the Act.
- 6.2. Council will provide dog compliance and enforcement activities to proactively use Council's powers under the Act to—
 - a. seize and hold dogs that are a threat to public safety or where concerns regarding a dog's welfare are identified;
 - b. classify dogs identified as menacing or dangerous as defined in the Act;
 - c. classify and disqualify owners as necessary by applying the processes set by sections [21](#) and [25](#) of the Act;
 - d. provide services that promote responsible dog management, including but not limited to investigating and resolving dog-related issues.

Related information on dangerous dogs

In accordance with Sections [31](#) and [57A](#) of the Act, Council must classify a dog as dangerous where —

- a. the owner of the dog has been convicted of an offence because the dog rushed at or startled any person, animal or vehicle in a manner that caused, or was likely to cause a vehicle accident or to endanger, injure or kill a person; or
- b. the dog is considered on reasonable grounds to be a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, based on sworn evidence of aggressive behaviour; or
- c. the owner admits in writing that the dog poses a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife.

When a dog is classified as dangerous—

- a. ownership of the dog cannot change without consent from Council;
- b. the dog maintains its classification no matter where it lives in New Zealand;
- c. the dog must be:
 - i. neutered within one month of receipt of the classification; and
 - ii. microchipped within two months of the date of classification; and
 - iii. muzzled in any public place or private way except when confined in a vehicle or cage; and
 - iv. kept within a securely fenced portion of the dog owner's property that provides dog-free access to at least one door of all dwellings on the property; and
 - v. controlled on a leash in any public place or private way (except when in a designated dog exercise area).

Dog owners that fail to comply with the above requirements may be subject to a fine under the Act.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

7. What does Whangarei District Council expect of dog owners?

- 7.1. Dog owners are expected to—
- register their dog(s); and
 - microchip their dog(s); and
 - neuter their dog(s) if required; and
 - meet the requirements of dogs classified as dangerous or menacing under the Act ([section 32](#) and [section 33E](#)); and
 - meet the requirements of a classified, probationary or disqualified owner under the Act ([section 21](#) and [section 25](#)).

8. Classification of menacing dogs under Section 33C of the Act

- 8.1. Due to the visual similarities between American Staffordshire Terriers and Pitbull Terriers, Council will classify all American Staffordshire Terriers as menacing, unless—
- the owner provides a certificate of ownership issued by Dogs New Zealand which indicates the dog's pedigree and has the dog's microchip number recorded on the certificate; or
 - the owner provides a DNA certificate indicating that American Staffordshire Terrier is the predominant or largest percentage of the breed makeup.

Related information about American Staffordshire Terriers

The Act requires all dogs of the breeds or types listed in Schedule 4 of the Act to be classified as menacing. [Schedule 4](#), Part 2 lists the American Pitbull Terrier as a type of dog. It is generally accepted that the visual characteristics of an American Staffordshire Terrier are similar to that of an American Pitbull Terrier.

9. Neutering of Menacing Dogs

- 9.1. Council requires all dogs that have been classified as menacing to be neutered within one month of receipt of the classification.
- 9.2. A dog classified as menacing maintains its classification no matter where it lives in New Zealand. The requirements of clause 9 apply to dogs classified by any other council and registered with Whangarei District Council.
- 9.3. Council may defer the requirement to meet clause 9.1 above—
- in accordance with section [33E\(1\)\(b\)\(ii\)](#) of the Act;
 - where the owner of the dog classified as menacing lodges an objection in accordance with the requirements of the Act. If Council decides to retain the menacing classification, the dog must be neutered within one month of receipt of this decision;
 - where additional enforcement actions or proceedings are being taken by Council against the owner of the dog because of the actions that resulted in the classification being made under section 33A(1) of the Act. Council reserves the right to request a menacing dog to be neutered on the completion of any such proceedings and within one month of Council notifying the dog owner of this request.

Related information on menacing dogs

Council must classify a dog as menacing where—

- a. it has not been classified as dangerous; and
- b. the dog may pose a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, because of—
 - i. any observed or reported behaviour of the dog;
 - ii. any characteristics typically associated with the dog's breed or type;
 - iii. if the dog belongs wholly or predominantly to one or more of the breeds or types listed in [Schedule 4](#) of the Dog Control Act 1996.

The owner of a dog classified as menacing must ensure the dog is—

- a. neutered within one month of receipt of the classification; and
- b. microchipped within two months of the date of the classification; and
- c. muzzled in any public place or private way except when confined in a vehicle or cage.

Dog owners that fail to comply with the above classification requirements may be subject to a fine under the Dog Control Act 1996.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

10. What is covered by the Dog Control Bylaw 2024?

- 10.1. Owners of dogs classified as menacing due to the behaviour of the dog are encouraged to undertake steps to improve the behaviour of the dog to be eligible to have the classification of the dog reviewed.

Responsible dog ownership

11. What will Whangarei District Council do?

- 11.1. Council will provide services that support the promotion of responsible dog management, including—
- encouraging educational opportunities to promote the purposes of the Policy and Bylaw from time to time;
 - promoting the welfare of dogs, as stated in the [Code of Welfare: Dogs, the Animal Welfare \(Care and Procedures\) Regulations 2018](#) and [Animal Welfare Act 1999](#). This includes, but is not limited to, providing sufficient food, water, shelter and care;
 - providing services that promote responsible dog management, including investigating and resolving complaints and other dog-related issues;
 - working to change attitudes and behaviours of irresponsible dog owners and, where appropriate, penalising irresponsible dog owners.

Related information about the Code of Welfare: Dogs, the Animal Welfare (Care and Procedures) Regulations 2018 and the Animal Welfare Act 1999

The Ministry of Primary Industries is responsible for administering the Animal Welfare Act 1999 and the associated Regulations and Codes.

The Code of Welfare: Dogs establishes minimum standards for the care and management of dogs. There are also housing requirements under the Regulations specific to dogs.

While not directly enforceable, failure to meet a relevant minimum standard in the Code of Welfare: Dogs may be used as evidence to support prosecution under the Animal Welfare Act 1999.

12. What does Whangarei District Council expect of dog owners?

- 12.1. Dog owners are expected to—
- know and comply with the rules concerning the management of their dog(s); and
 - be responsible for their dog's behaviour; and
 - provide proper care and attention to their dog(s), including providing sufficient food, water, shelter and adequate exercise, as defined by the [Animal Welfare Act 1999](#) and Act; and
 - consider neutering their dog(s) as early as possible under guidance from a vet; and
 - ensure their dog does not leave their property by itself; and
 - take all reasonable steps to ensure their dog does not cause a nuisance to any other person. Be particularly vigilant near children and closely supervise interaction; and
 - appropriately remove and dispose of their dog's faeces; and
 - always keep their dog under control.

13. What is covered by the Dog Control Bylaw 2024?

- 13.1. When in a public place or premises, dog owners must ensure the immediate removal and disposal of their dog's faeces in a way that does not cause nuisance.
- 13.2. Dog owners may be required to neuter their dog, if the dog has been found to be uncontrolled more than once in a 12-month period.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Dog access rules

14. What will Whangarei District Council do?

- 14.1. Council will provide dog access rules in the Bylaw that are comprehensive, consistent, easy to understand and comply with the following dog access principles:
 - a. recognise dog owners as legitimate users of public places and that dog access to these places is essential for dog welfare:
 - b. integrate, where practicable, dog owners and their dogs with other users of public places:
 - c. provide opportunities for dog owners to take their dog(s) to public places that are accessible, desirable, and provide diversity of experience for both the dog and owner:
 - d. promote safe interaction between dogs and people using public places to ensure that dogs do not injure, endanger, intimidate or otherwise cause distress to any person, in particular children and vulnerable adults:
 - e. manage conflict between dogs and protected wildlife, native flora, livestock, poultry, domestic animals and property.
- 14.2. When making decisions regarding any changes to a dog access rule on parks or beaches, Council will consider the matters provided in 14.1 above.
- 14.3. Council will provide information to dog owners via signage and Council's website that is comprehensive, easy to understand, and up to date.
- 14.4. Council will maintain rules on dog access in public places and private ways as per Schedules 1 and 2 of this Policy.
 The types of dog access rules provided in Schedules 1 and 2 are—
 - a. default dog access rules, to ensure there is a rule applied to all public places in the District where the rules provided in (b) to (f) below, and as detailed in Schedule 2, do not apply:
 - b. on-leash: a place shared with other users, where dogs must be on a leash and under control at all times:
 - c. prohibited: a place where dogs are not permitted to be, and other users have priority:
 - d. off-leash: a place shared with other users, where dogs may be off a leash but must still be under control at all times:
 - e. designated dog exercise area: a place where dog owners are the priority user. Dog owners may take their dogs off a leash, including dangerous dogs, but they must be under control at all times:
 - f. summer season rules: a place shared with other users where the dog access rules will be different depending on the time of day during the summer season. This is to minimise the conflict between dogs and other users of the space during peak hours.
- 14.5. From time to time, Council may make temporary changes to the dog access rules in Schedules 1 and 2 in relation to—
 - a. leisure and cultural events (including dog friendly events):
 - b. the protection of wildlife vulnerable to dogs:
 - c. the protection of flora vulnerable to dogs:
 - d. pest control in any park and/or beach:
 - e. other circumstances of a similar nature.

15. What does Whangarei District Council expect of dog owners?

- 15.1. Dog owners are expected to—
- a. respect other people's personal space and be aware that public places are for everyone's enjoyment and not everyone is fond of dogs; and
 - b. know when their dog must be on a leash and always carry a leash in public; and
 - c. keep their dog under control at all times in public places, including putting their dog on a shortened leash, even in off-leash areas if their dog is likely to ignore their commands; and
 - d. make reasonable efforts to determine and comply with the dog access rule that applies at a park or on a beach before taking their dog(s) into the area; and
 - e. ensure any female dog in season or a dog with a contagious disease does not enter or remain in any public place unless—
 - i. the dog is confined in a vehicle or cage for the purposes of transportation; or
 - ii. the owner of the dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.

16. What is covered by the Dog Control Bylaw 2024?

- 16.1. Owners must exercise their dog(s) in locations and/or ways that are consistent with the dog access rules. This includes ensuring their dog is under control on-leash, off-leash or in a designated dog exercise area as specified.
- 16.2. Dog owners must ensure that their dog is kept under control in public places and private ways.
- 16.3. The ability to make temporary changes to dog access rules.
- 16.4. Exemptions for working dogs from being prohibited in any areas.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Schedule 1

1. General dog access rules

The general dog access rules listed in Schedule 1 always apply, regardless of any rule stated in Schedule 2.

For example, if a park is listed as an off-leash area in Schedule 2 but the park has a playground, dogs are still prohibited on the playground.

Playgrounds and skateparks under the control of Council

Dogs are prohibited on all playgrounds and skateparks at all times and must be under control on a leash in the vicinity of all playgrounds and skateparks.

Sports fields under the control of Council

Dogs are prohibited on all sports fields at all times and must be kept under control on a leash in the vicinity of any sports field.

Council cemeteries

Dogs are **prohibited** from all Council-controlled cemeteries, unless:

- a. permission is obtained from an Authorised Officer; or
- b. signage indicates dogs are allowed, provided that the person who is accompanying the dog complies with any reasonable conditions imposed by Council in relation to the dog.

2. Default dog access rules

Unless otherwise stated in Schedule 2, the following default rules apply:

- 2.1 Dogs must be **under control on a leash** in all Council-controlled public places where there are no physical restrictions to access (such as fences or other indoor facilities). This includes:
 - a. all formed public roads (including any street, highway, access way, service lane, and any footpath, cycle track, shared path, bus stop and berm within the boundaries of the road);
 - b. private ways;
 - c. Council-controlled car parks;
 - d. Council-controlled boating areas (including any wharf, jetty, boat ramp or boat marshalling area).
- 2.2 Dogs are **prohibited** in all Council-controlled public places with restricted access (such as fenced sports stadiums and libraries), unless:
 - a. permission is obtained from an Authorised Officer; or
 - b. there is official Council signage which indicates dogs are permitted.
- 2.3 Where dog access is permitted under 2.2, dog owners must comply with any reasonable conditions imposed in relation to their dog(s).
- 2.4 Dogs are prohibited in all Council-controlled water supply or stormwater treatment areas that are generally accessible to the public unless there is official Council signage which indicates dogs are permitted.
- 2.5 Dogs must be under control on a leash in all other public places not under the control of Council (such as cafes, shopping malls, school grounds, non-Council cemeteries and urupā), unless:
 - a. there is signage indicating that dogs are prohibited; or
 - b. the person in charge of the place states that dogs are prohibited and requests the dog to be removed.
- 2.6 The summer season rule that applies to any area specified in Schedule 2 is:
 - a. Time: 9am to 5pm.
 - b. Season: 20 December to 31 January.

Schedule 2

Location specific dog access rules

Related information about Schedule 2

To assist in understanding, maps have been provided as [related information](#) for some of the areas listed in the following sections. In each case a map reference number is provided. The maps can be found at the end of Schedule 2.

1. Dogs are allowed under control off a leash in designated dog exercise areas

The following areas are designated dog exercise areas:

Area	Location
William Fraser Memorial Park on Pohe Island	Fenced area southeast of David Culham Drive
William Fraser Memorial Park on Pohe Island	Fenced area opposite carpark off Pohe Island Road

2. Dogs are allowed under control on a leash

- 2.1 The default rule on-leash rule in **Schedule 1** applies to all parks and reserves in the District unless a different rule, either for the entire park or a section of the park, is provided for in Schedule 2.

However, to assist in understanding, the list below of key parks and reserves in the District is provided as [related information](#), but does not constitute the complete list of parks and reserves where dogs must be on a leash. This list may be updated at any time without formality.

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Abbey Caves		<i>Mair Park - all areas not listed elsewhere in Schedule 2</i>	12
Albany Road Reserve		Marina Reserve Tutukaka	
<i>Barge Park – all areas not listed elsewhere in Schedule 2</i>	1	Nixon Street Park	1
Biller Road Walkway		Otangarei Central Reserve	
Cafler Park		Panorama Drive Reserve	
Cookson Park		Potter Park	
Fishbone Park		Puriri Park Reserve	
Fitzpatrick Reserve		<i>Raumanga Valley Scenic Reserve - all areas not listed elsewhere in Schedule 2</i>	23
Headland Park		Resolution Place/Endeavour Place Reserve	
King Street Park, Hikurangi		Sherwood Park	
Kitemaunga Avenue Reserve		<i>Tarewa Park - all areas not listed elsewhere in Schedule 2</i>	24
<i>Korau Road Reserve - all areas not listed elsewhere in Schedule 2</i>	10	Tikipunga Library Reserve	10

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Lake Waro		<i>Totara Parklands - all areas not listed elsewhere in Schedule 2</i>	26
Laurie Hall Park		Waipu Caves Reserve	
Lockheed Place Reserve		Wairau Drive Reserve	
<i>Limeburners Creek Walkway - all areas not listed elsewhere in Schedule 2</i>	11	<i>William Fraser Memorial Park on Pohe Island - all areas not listed elsewhere in Schedule 1 or 2</i>	11

2.2 Dogs are allowed under control on a leash on the following beach and foreshore areas:

Area	Location	Appendix 1 Map #
Marsden Bay	Beach and foreshore eastward to groyne	TBD
Marsden Point	Beach and foreshore from Northport at Ralph Trimmer Drive to Mair Road	3
Whananaki North	Rockell Bay - <i>rocky outcrop to rocky outcrop</i>	31
Whananaki North	Brookers Bay/Woolshed Bay - <i>from the rocky outcrop at the northern end of Moureeses Bay northward to the northern outcrop at the northern end of Brookers Bay</i>	31
Tutukaka Coast	Matapouri Estuary Reserve - boat launching area	14
Tutukaka Coast	Ngunguru - Kauakarangi Bay sandspit (opposite Ngunguru School)	18

3. Dogs are allowed under control off a leash

3.1 On the following reserves/parks:

Location	Attachment 1 Map #
Anzac Park	
Barge Park - <i>main fields from road boundary to wetlands</i>	1
Beazley Park	
Blacksmith's Creek Walkway - <i>open grass area from beginning of walkway eastward to second bridge</i>	13
Cairnfield House parklet	
Cairnfield Reserve	
Cobham Place Reserve	
Corks Road/Amber Drive reserve	
Deveron Reserve	12
Elgin Place Reserve	
Gillingham Road - Waitaua Stream Reserve	
Hikurangi - <i>open grass area immediately south of transfer station</i>	TBD
Hodges Park	
Korau Road Reserve - grass area beyond low fence	10
Lower Panorama Drive Reserve	
Mair Park - <i>on the grass area on the western side of the river north of the footbridge and on connecting walkway to Deveron Reserve</i>	12
Mander Park	

Moody Ave Reserve	
Nottingham Road Reserve	
Okara – Former Old Boys rugby grounds playing fields	
Panorama Drive Reserve (upper) - <i>open grass area southeast of playground</i>	TBD
Pah Road Reserve	
Raumanga Valley Scenic Reserve - <i>grass area west of playground</i>	23
Raurimu Avenue Park	
Riverside Reserve	
Ross Street Park	
Shearwater Reserve	
Station Road Reserve	
Tamingi Street Reserve	
Tarewa Park - <i>grass area at southwestern end of park beyond footpath</i>	24
Tauroa Reserve	
Te Paka Reserve	
Tikipunga Sports Park - <i>grass area off Ngunguru Road and grass area bordered by walkway and Hatea River</i>	25
Totara Parklands - Wairau Drive/Harrison Drive - <i>large grass area north of shared path</i>	26
Waiarohia Reserve	
Waikaraka Beach Road grass area (road reserve)	27
Whale Tail Park/Kopipi Reserve	

3.2 On the following beach and foreshore areas:

Area	Location	Attachment 1 Map #
Bream Bay	From Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk	4
Bream Bay	From boardwalk beach access point between 117 and 119 Bream Bay Dr southward to pedestrian access point at Uretiti Beach Conservation Campground	6
Bream Bay	From a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road	TBD
One Tree Point	Foreshore from Marsden Yacht Club southeastward to carpark area and foreshore access opposite 189 One Tree Point Road	19
Tutukaka Coast	Ngunguru - beach and foreshore area from south-eastern end of Kauakarangi Bay sandspit southeastward to the beginning of the Whangaumu lookout walkway	18
Tutukaka Coast	Ngunguru Estuary - Village side - foreshore area from opposite public toilets northward to opposite shops	17
Tutukaka Coast	Tutukaka Marina Beach	
Whananaki North	Foreshore area between boat ramps	29
Whangarei Heads	Waikaraka Beach Road foreshore area	27

4. Dogs are prohibited

4.1 On the following reserves/parks:

Location	Attachment 1 Map #
AH Reed Park - <i>excluding Hatea River Walkway - Elizabeth Track</i>	
Barge Park - <i>all wetland areas</i>	1
Blacksmith's Creek Walkway - <i>all wetland areas and walkway beyond second bridge</i>	13
Coronation Scenic Reserve	
Dip Road Reserve (Kamo)	
Elgin Place Bush Reserve (Kamo)	
Granfield Place Reserve (Kamo)	
Kauri Mountain Reserve	
Kauri Mountain Trail	
Kukupu Road Reserve (Matapouri)	
Magnolia Avenue Bush Reserve (Kamo)	
Matakohe/Limestone Island	
Maungatapere Bush Reserve	
McLeod Bay Reserve (opposite Fire Station)	
Mt Aubrey - Reotahi Walkway & Mt Aubrey Walkway	16
Neptune Drive Reserve (McLeod Bay)	
Parihaka Mountain Bike Park - <i>all mountain bike trails</i>	20
Parihaka Reserve	
Pukenui Forest	
Tutukaka Lighthouse Walk - Kukutauwhao Island	
Whale Bay/Matapouri Reserve	
Whananaki Coastal Walkway	
Whananaki Sandspit	29
Whangārei Quarry Gardens	

4.2 On the following beach and foreshore areas and wetlands:

Area	Location	Attachment 1 Map #
Bland Bay/Whangaruru	Bland Bay Beach - northern end of beach southward to a line northeast of the northernmost point of Logan Nicks Reserve	2
Bland Bay/Whangaruru	From Waitapu Rock eastward to the western end of Tuparehuia Bay	2
Bream Bay	Princes Road foreshore area from one-way bridge on Ruakaka Beach Road northward to northern end of Princes Road boat ramp reserve	5
Bream Bay	Ruakaka Racecourse access point southward to end of accessible beach/foreshore at Ruakaka River	5
Bream Bay	Ruakaka River from one-way bridge on Ruakaka Beach Road northward along the foreshore around campground to northern pedestrian access point at Ruakaka Beach Reserve	5
Bream Bay	From Tip Road southward to Waipu River mouth.	7
Bream Head	From Urquhart Bay Road carpark southward around headland to southern end of Ocean Beach west of Moturaka and Tarakanahi Islands	8

Kauri Mountain	Kauri Mountain Beach, from Awarua Rock southward to rocky outcrop at northern end of Ocean Beach	9
Port Whangarei	Kioreroroa Road Wetlands/Limeburners Creek Walkway – <i>all wetland areas not part of the walkway</i>	11
Marsden Bay	Beach and foreshore area including wetlands from the groyne at Marsden Bay Beach eastward to Northport and southward to Papich Road	13
Marsden Bay	Beach northwest of channel and beach and foreshore from channel southeastward to groyne	13
Mimiwhangata	From Parapahi Point southward to southern end of Ruatahi Islet	15
Tutukaka Coast	From the eastern end of Ngunguru River Reserve (DOC Reserve) eastward then northward around the sandspit and southward to southern side of Horahora River mouth	17
Tutukaka Coast	Tutukaka Lighthouse walkway - beach and foreshore area between DOC reserve and Kukutauwhao Island	
Waipū	From accessible beach/foreshore area at Waipu River mouth southward to access track at northern end of campground	28
Whananaki	Whananaki Inlet	29
Whananaki	Whananaki Sandspit foreshore	29
Whananaki North	From the northwestern end of Motutara Beach southeastward around the headland to the boat ramp on Whananaki Wharf Road	29
Whananaki North	Otamure Bay - from rocky outcrop at western end of Otamure Bay eastward to Andesite Point	30
Whangarei Heads	Beach and foreshore from end of Reotahi Road southward and eastward to the western end (but not including) little Munro Bay	16

5. A summer season rule applies

- 5.1 Dogs are allowed on all beach and foreshore areas in the Whangarei District, except for those areas provided for under sections 2.2, 3.2 and 4.2 of Schedule 2, subject to the following summer season rule:

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control off a leash	

- 5.2 Dogs are allowed in the areas below, subject to the following summer season rule:

- Pataua South at bridge/toilets - grass area from footbridge eastward to end of accessible grass area (Map #22)
- Whananaki North Boatramp Reserve (reserve next to boat ramp and foreshore area between boat ramps) (Map #29)
- Logan Nick Reserve (Bland Bay/Whangaruru) (Map #02)
- Parua Bay Reserve /Boatramp - grass area within bollards (Map #21)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Under control on a leash	
	Evening (after 5pm)	Under control off a leash	

- 5.3 Dogs are allowed in the areas below, subject to the following summer season rule:

- Bland Bay Beach - From a line northeast of the northernmost point of Logan Nicks Reserve southeastward to Waitapu Rock (Map #02)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control on a leash	All times Under control on a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control on a leash	

Related Information – Maps

to be finalised

DRAFT

Whangarei District Council

Dog Control Bylaw 2024

draft

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1. Title

- 1.1. This Bylaw is the Dog Control Bylaw 2024.

2. Commencement

- 2.1. This Bylaw comes into force on **XX XXX 2024**.

3. Application

- 3.1. This Bylaw applies to the Whangarei District.

Part 1 – Preliminary provisions

4. Purpose

- 4.1. The purpose of this Bylaw is to give effect to Whangarei District Council's Dog Management Policy 2024 by:
- a. prohibiting dogs, whether under control or not, from specified public places;
 - b. requiring dogs, other than working dogs, to be controlled and on a leash in specified public places;
 - c. regulating and controlling dogs in any other public place;
 - d. requiring the owner of any dog that defecates in a public place or on land or premises other than that occupied by the owner to immediately remove the faeces;
 - e. requiring any female dog in season or a dog with a contagious disease to be excluded from public places;
 - f. requiring the owner of any dog which has not been kept under control on more than two occasions to be neutered; and
 - g. providing a review process for owners of dogs classified as menacing by behaviour to have that classification reviewed.

5. Interpretation

- 5.1 Any word used in this Bylaw that is defined in section 2 of the Dog Control Act 1996, and not included in clause 5.2 below, has, for the purposes of this Bylaw, the same meaning as in [section 2](#) of the Dog Control Act 1996.
- 5.2. In this Bylaw, unless the context otherwise requires:

Access way

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Act

means the [Dog Control Act 1996](#).

Authorised Officer

means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.

Beach

means and includes the following:

- a. the foreshore as defined by [section 2](#) of the [Resource Management Act 1991](#)
- b. the inter-tidal zone above mean low water springs
- c. any adjacent area that can reasonably be considered part of the beach environment including areas of sand,

pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.

Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, and includes any person or committee delegated to act on its behalf in relation to this Bylaw.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .
Foreshore	has the meaning given by section 2 of the Resource Management Act 1991 .
Menacing dog	means a dog that has been classified as a menacing dog under section 33A of the Act.
Neutered dog	has the meaning given by section 2 of the Act.
Owner	has the meaning given by section 2 of the Act.
Park/Reserve	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
Playground	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark. Use of a playground means that the playground is currently being used or occupied by one or more persons.
Policy	means the Whangarei District Council Dog Management Policy 2024.
Premise	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
Private way	has the meaning given by section 315 of the Local Government Act 1974 .
Public place	has the meaning given by section 2 of the Act.
Road	has the meaning given by section 315 of the Local Government Act 1974 , except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: - a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or - where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway,

footpath or cycle track that is closest to the centre of the park.

Sports field

means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome. Use of a sports field means that the area is being used for sports events or training for sports events by one or more persons.

Skatepark

means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pumptracks.

Service lane

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Working dog

has the meaning given by section 2 of the Act.

- 5.3. Related information and links to webpages do not form part of this Bylaw and may be inserted, changed or removed without any formality.
- 5.4. The [Legislation Act 2019](#) applies to this Bylaw.
- 5.5. To avoid doubt, compliance with this Bylaw does not remove the need to comply with all other applicable Acts, regulations, bylaws, regional or district plans, or reserve or park management plans.

Part 2 – Regulation and control of dogs

6. Prohibition of dogs in public places

- 6.1. The owner of any dog must ensure that their dog (including when confined in a vehicle or cage) does not enter or remain in any public place specified as prohibited in Schedule 1 or 2 of the Policy.
- 6.2. Clause 6.1 does not apply to a working dog; if a working dog is present in a prohibited area for the purpose of performing its functions as provided for in section 2(b) of the Act.
- 6.3. The owner of any female dog in season must ensure the dog does not enter or remain in any public place or private way unless—
 - a. that dog is confined in a vehicle or cage for the purposes of transportation; or
 - b. the owner of that dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.
- 6.4. The owner of any dog infected with a contagious disease must ensure the dog does not enter or remain in any public place or private way unless that dog is confined in a vehicle or cage for the purposes of transportation to a veterinary clinic for treatment.

7. Dogs on a leash in public places and private ways

- 7.1. The owner of any dog must ensure that the dog is controlled on a leash in the public places and private ways as specified in Schedule 1 or 2 of the Policy.
- 7.2. Clause 7.1 does not apply to any dog confined in a vehicle or cage.

Related information

Working dogs include disability assist dogs, dogs kept by state departments such as police dogs and customs dogs, pest control dogs and dogs kept solely or principally as stock or herding dogs. A full list can be found in [section 2](#) of the Act.

Working dogs are excluded from the requirement to comply with clause 7 of this Bylaw under [section 10\(3\(c\)\)](#) of the Act.

Disability assist dogs are those dogs certified as disability assist dogs by the organisations listed in [Schedule 5](#) of the Act. Disability assist dogs are not required to comply with clauses 6 or 7 of this Bylaw under [section 75](#) of the Act.

[Section 54A](#) of the Act requires all dog owners to carry a leash at all times regardless of the provisions of this Bylaw. This section does not apply to the owner of a working dog in relation to the working dog.

8. Dogs off a leash in public places

- 8.1. The owner of any dog (other than a dangerous dog) may take that dog off a leash in the public places as specified in Schedule 2 of the Policy, provided that the dog is kept under control.

9. Dogs in designated dog exercise areas

- 9.1. The owner of any dog (including a dangerous dog that is muzzled) may take that dog off a leash in a designated dog exercise area as specified in Schedule 2 of the Policy, provided that dog is kept under control.

Related information

Clause 2 of this Bylaw defines 'control' as: "in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog."

10. Temporary changes to dog access rules

- 10.1. Council may make temporary changes to Schedules 1 and 2 of the Policy in relation to:
- leisure and cultural events (including dog friendly events);
 - dog training;
 - the protection of wildlife vulnerable to dogs;
 - the protection of flora vulnerable to dogs;
 - pest control in any park and/or beach (as defined in the Policy); or
 - other circumstances of a similar nature to subclauses (a) to (e) of this clause.
- 10.2. In making or removing a temporary change to Schedules 1 and 2 of the Policy under Clause 10.1, Council must:
- have regard to the dog access principles in the Policy;
 - specify in writing the reasons, location and timeframe for which the temporary change is to apply;
 - publicise the temporary change in a manner that Council considers appropriate in the circumstances; and
 - clearly indicate the area subject to the temporary change by 1 or more clearly legible signs affixed in 1 or more conspicuous places on, or adjacent to, the place to which the temporary change relates, unless it is impracticable or unreasonable to do so.

11. Dog faeces

- 11.1. When in a public place or premise, dog owners must ensure the immediate removal and disposal of their dog's faeces. This must be done in a way that does not cause a nuisance.
- 11.2. Clause 11.1 does not apply to a premise occupied by the owner.
- 11.3. Clause 11.1 does not apply to any working dog herding or driving stock on a road where the dog is kept solely or principally for the purposes of herding or driving stock.

12. Requirement to neuter uncontrolled dog

- 12.1. Council may require the owner of a dog to have that dog neutered if, within a 24-month period—
 - a. an infringement notice, under section 53 of the Act, has been issued at least twice; or
 - b. the dog has been impounded at least twice as a result of not being kept under control.
- 12.2. A breach of a requirement under Clause 12.1 is an offence against this Bylaw.

Related information

Section 53 of the Act provides that it is an offence for a dog owner to fail to keep their dog under control and in relation to this, Schedule 1 of the Act states the infringement fee for such an offence is \$200.

Section [52\(2\)](#) of the Act provides a specific description of the circumstances where a dog can be deemed to be "not under control" for the purposes of being issued an infringement notice under Clause 12.1.a as well as allowing for dogs to be impounded under Clause 12.1.b.

Dog owners who do not get their dog neutered in the time specified may be subject to enforcement action in accordance with Clause 12.2 of this Bylaw and will still be required to neuter their dog.

13. Objection to requirement to neuter uncontrolled dog

- 13.1. If a dog is required to be neutered under clause 12, the owner of that dog:
 - a. may, within 14 days of receiving the notice, object to the requirement by writing to Council; and
 - b. has the right to be heard in support of their objection under clause 13.1.a.
- 13.2. Council may, when considering an objection under clause 13, uphold or rescind the requirement. In making its determination, Council must have regard to:
 - a. the evidence which formed the basis for the requirement;
 - b. the matters relied upon in support of the objection; and
 - c. any other relevant matters.
- 13.3. Following its consideration of an objection under clause 13.2, Council must, as soon as practicable, give written notice to the dog owner of:
 - a. its determination on the objection; and
 - b. the reasons for its determination.

14. Effect of requirement to neuter uncontrolled dog

- 14.1. If a dog is required to be neutered under clause 12, the owner of that dog must, within 1 month of receiving the notice of the requirement, provide to Council a certificate issued by a veterinarian certifying that:
- a. the dog is or has been neutered; or
 - b. for reasons that are specified in the certificate, the dog will not be in a fit condition to be neutered before a date specified in the certificate.
- 14.2. If a certificate under clause 14(1)(b) is provided to Council, the owner must provide to Council, within 1 month after the date specified in that certificate, a further certificate under subclause 14 (1)(a).

15. Request for review of a menacing dog classification

- 15.1. If a dog has been classified as menacing due to its behaviour under [section 33A](#) of the Act, the owner may request the classification be reviewed no earlier than 24 months after the date of classification, if—
- a. the owner provides evidence of a dog behavioural assessment report, such report to be obtained at the owner's expense; and
 - b. the owner has not been issued with any infringement notices in relation to the dog within the preceding 24-month period.
- 15.2. Removing the classification of a dog as menacing is at Council's discretion.

Part 3 – Enforcement, offence, penalties

16. Enforcement

- 16.1. Council may use its powers under the Dog Control Act 1996 and the [Local Government Act 2002](#) to enforce this Bylaw.

17. Offences and penalties

- 17.1. Every person who breaches this Bylaw commits an offence.
- 17.2. Every person who commits an offence under this Bylaw is liable to the penalties under the Dog Control Act 1996 and the Local Government Act 2002.

Part 4 – Savings, transitional provisions

18. Requests for removal of menacing classification

- 18.1. Requests for the removal of a menacing classification due to the behaviour of a dog may be made for classifications made within the 12-month period prior to this Bylaw coming into force.

Analysis of submission points on the proposed Dog Management Policy and Dog Control Bylaw received during statutory consultation (May-June 2024)

1. Dog access rules

The dog access rules in Schedules 1 and 2 of the proposed Dog Management Policy (the Policy) attracted 774 submission points. Of these, 662 related to a rule in a specific location; another 112 related to access rules more generally. Tables 1 and 2 below provide a high-level summary.

Table 1: Location-specific dog access rules

Location	No. subs	Proposed rule	For more access	For less access	For proposal	Other
Abbey Caves	4	On-leash	1	2	1	
AH Reed Park	3	Prohibited	3			
Anzac Park	1	Off-leash		1		
Barge Park	1	Mixed	1			
Blacksmith's Creek off-leash	1	Off-leash		1		
Blacksmith's Creek prohibition	2	Prohibited	2			
Bland Bay	14	Mixed	10	3	1	
Bream Bay (general)	2		1	1		
Bream Bay A (Northport)	8	On-leash	7		1	
Bream Bay B (Mair Rd-Ruakanohi St)	5	Off-leash		1	4	
Bream Bay C (Ruakākā at Ruakanohi St)	1	Default beach	1			
Bream Bay D (racecourse southwards)	2	Prohibited	1		1	
Bream Bay F (Ruakākā river south side)	1	Prohibited	1			
Bream Bay G (Ruakākā surf beach)	1	Default beach			1	
Bream Bay H (boardwalk-DOC campground)	3	Off-leash		1	1	
Bream Bay I (DOC campground-Tip Rd)	422	Default beach	421		1	
Bream Bay J (Tip Rd-river mouth)	4	Prohibited			4	
Bream Head A (Urquharts Bay)	6	Off-leash		5		
Bream Head D (Kauri Mountain beach)	11	Prohibited	8		3	
Cafler Park	1	On-leash			1	
City centre	41	On-leash		24	17	
Coronation Scenic Reserve	1	Prohibited	1			
Hātea Loop	3	On-leash	1		2	
Hātea River walkway	6	On-leash	3	2	1	
Hikurangi	6	Mixed	6			

Location	No. subs	Proposed rule	For more access	For less access	For proposal	Other
Koropupu Sports Park	1	Mixed			1	
Langs Beach	8	Default beach	5	2	1	
Mair Park	3	On-leash		1	2	
Marsden Bay	9	Prohibited	9			
McLeod Bay Reserve (opposite fire station)	1	Prohibited			1	
Mt Aubrey (incl beach)	11	Prohibited	7		4	
Ngunguru Estuary	2	Off-leash		2		
One tree Point (yacht club to 189 OTP Rd)	3	Off-leash		1	2	
One Tree Point western side	2	Default beach	1			1
Otaika Sports Park	1	Mixed	1			
Panorama Drive (upper)	1	On-leash	1			
Parihaka MTB	2	Mixed	1		1	
Parihaka Reserve	9	Prohibited	8			1
Pataua North beach	4	Default beach	3	1		
Pohe Island (default on-leash)	5	On-leash	2	1	2	
Pukenui Forest	1	Prohibited	1			
Rockell Bay	1	On-leash		1		
Sandy Bay (Tutukaka)	1	Default beach		1		
Stuart Rd foreshore	2	Default beach	2			
Tamaterau foreshore	2	Default beach	1	1		
Tikipunga shared path (Ngunguru Rd-Gillingham Rd)	3	On-leash	3			
Tikipunga sports park	5	Mixed	5			
Totara Parklands	3	On-leash	2		1	
Tutukaka coast (general)	3	Mixed	2		1	
Tutukaka lighthouse walk-Kukutauwhao Island	2	Prohibited		2		
Waihoihoi River Park, Waipu	2	On-leash			1	1
Waikaraka Beach Rd foreshore	1	Off-leash			1	
Waimahanga Track	2	On-leash	1		1	
Waipu Caves	1	On-leash			1	
Waipu Cove beach	6	Default beach	4	2		
Waipu River mouth southwards	4	Prohibited	2		2	
Whale Bay/Matapouri reserve	1	Prohibited	1			
Whananaki (general)	1	Mixed			1	
Whananaki sandspit	5	Prohibited	2		3	
Whangarei Heads (general)	1	Mixed			1	
Whangaumu Bay	1	Default beach	1			
Whau Valley Dam	1	Prohibited	1			
Woolleys Bay	1	Prohibited			1	

Table 2: General dog access rules

Comment type	No. subs
Mentions sportsfields, of which: - 4 want off-leash when no game on - 1 supports proposal - 2 other	7
Beaches on-leash during summer	3
Dogs on-leash in all public place at all times	13
Keep things the way they are	3
More dog access in general needed	14
Less dog access in general needed	2
No dogs near vulnerable wildlife on beaches	5
On-leash on beaches where other users are	4
Less summer beach access	4
More off-leash beaches	6
More off-leash generally	15
More on-leash generally	5
More prohibited generally	1
More restrictions to protect wildlife generally	11
More summer beach access	19

2. Dog Management Policy

In total 45 submission points were received on the Policy, outside of the dog access rule provisions discussed above. Of these, 21 were in support of the proposed amendments to the Policy.

Some clauses did not receive any feedback. Therefore, no decisions relating to changes are required and they are excluded from this analysis.

Table 3 below summarises the feedback received together with the associated staff analysis. Some aspects of the feedback have already been reported to Council at the 3 July Briefing in detail and therefore these sections have been further summarised for conciseness.

Table 3: Feedback on proposed amendments to the Policy

Clause/Matter	Summary of feedback	Staff comment
5. Fees and Charges	Submissions: 24 Including requests for discounts for responsible dog owners and Gold Card holders	Council is not precluded from providing additional discounts for registration fees through the annual fee setting process.
Owner education programmes and dog obedience classes	Submissions: 12 Requesting Council to provide for these matters in the Policy	The Policy provides for Council to encourage educational opportunities to promote the purpose of the Policy from time to time. Council can direct staff to act on this provision subject to capacity and resource availability.
Removal of information on infringements	Submissions: 2	These matters are regulated under the Dog Control Act 1996

	Requested the retention or inclusion of information on issuing infringement notices and offence procedures and penalties	(DCA). Dog Control Officers have discretion to act when considering whether to issue an infringement and staff operate in accordance with operation policy on these matters.
8. Classification of menacing dogs by breed	Submissions: 1 in support. Four submitters expressed concerns about breed classification matters	The matters raised by submitters largely relate to the requirements of the DCA. The process of classifying menacing dogs by breed is an operational matter which can be reviewed by staff in response to some of the concerns raised.
12.1.d. Expectations of dogs regarding neutering dogs	Submissions: 1 Opposed the wording in encouraging dog owners neutering their dogs at an early age as there are issues with neutering dogs too young	Staff consider a rewording of this section is appropriate to mitigate this concern.
Inclusion of information on authorisation to act	Submissions: 1 Requested clarification and content in the Policy on whether and how Council contractors have the authority to act	All enforcement actions are taking by appointed Dog Control Officers or Rangers under sections 11 or 12 of the DCA who are appropriately appointed and warranted under the legislation, this includes staff who work for the currently contracted dog management services. All Officers always carry their warrant cards to provide appropriate identification where necessary.
Related information	Submissions: 1 Requested further clarification on some of 'related information' content on dangerous and menacing dogs	Staff can review and update this information if required or appropriate to address the issue raised.
Related information - Maps	Submissions: 3. Comments on the design and readability of the maps. Additionally, other submissions have potentially misinterpreted the proposal as a result of the mix of rules (WDC and DOC) showing on the maps	Staff consider the comments regarding the design and 'readability' of the maps are valid and these are being reviewed for the final set of maps to be produced to support the Policy.

3. Dog Control Bylaw

In total 36 submission points were received on the Dog Control Bylaw (the Bylaw). Of these, 17 were in support of the proposed new Bylaw, with one submitter stating their opposition in general.

Some Bylaw clauses did not receive any feedback. Therefore, no decisions relating to changes are required and they are excluded from this analysis and commentary.

Table 4 below summarises the feedback received together with the associated staff analysis. Some aspects of the feedback have already been reported to Council at the 3 July Briefing in detail and therefore these sections have been further summarised for conciseness.

Table 4: Feedback on the proposed new Bylaw

Clause/Matter	Summary of feedback	Staff comment
6.2 Prohibition of dogs in public places.	Submissions: 3 Submitters concerned that the working dog exemption implies that working dogs can at any time (even if they are not 'working') enter a prohibited area.	The clause only allows dogs to be in a prohibited area if it is there in its capacity as a working dog only. A review of the clause wording is appropriate to ensure clarity for the reader.
9. Designated dog exercise areas	Submissions: 1 Opposed to dangerous dogs in dog exercise areas.	This provision is provided for under the DCA and dogs must be muzzled at all times.
10. Temporary dog access rules	Submissions: 4 in support. One submitter expressed concern that someone may inadvertently breach the bylaw due to insufficient knowledge of the temporary rule.	The proposed clause provides that Council must publicise the temporary changes and provide clear signage. Dog Control Officers have full discretion whether to provide educational information or a verbal warning rather than taking immediate enforcement action.
11. Dog faeces	Submissions: 11 in support.	NA
12. Requirement to neuter uncontrolled dogs.	Submissions: 3 in support. Two submitters expressing concerns regarding a lacking definition of concern.	The DCA provides a framework for what a dog "under control" means for the purposes of interpreting and enforcing the Bylaw (sections 5, 20, 52 and 53). Additionally, the clause stipulates the criteria that must be met for this requirement to be made, which includes that at least two infringements have been issued or the dog has been impounded twice.

		Additional related information content can assist in understanding.
15. Review of menacing dog classification.	Submissions: 2 in support.	NA
Request to include minimum standards for dog accommodation & request to include requirement for dogs to be tied up at night.	Submissions: 1 each per request.	Prescribing minimum standards for dog accommodation and requiring them to be tied up at night is provided for in the DCA. However, feedback from regulatory staff is that this would be challenging to enforce while not necessarily achieving the desired outcomes.
Request to include a clause that states that dogs can be impounded for a breach of the Bylaw	Submissions: 1	Section 19 of the DCA provides that a Dog Control Officer or Ranger can impound a dog if they consider on reasonable grounds that an offence against a bylaw made under the Act has been committed, the inclusion of an additional clause re-stating this is unnecessary.
Request to limit the number of dogs per property.	Submissions: 4	Staff consider this is a challenging provision to include and would likely negatively impacting on responsible dog owners who own multiple dogs but whose dogs do not cause any issues or concerns in their neighbourhood.
Request for retention of existing clause for dogs to be under control at all times.	Submissions: 2	See staff comment on Clause 12 regarding the definition of under control. Additional related information content can assist in understanding.

RESOLUTION TO EXCLUDE THE PUBLIC

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

1.	The making available of information would be likely to unreasonably prejudice the commercial position of persons who are the subject of the information. {Section 7(2)(c)}
2.	To enable the council (the committee) to carry on without prejudice or disadvantage commercial negotiations. {(Section 7(2)(i))}.
3.	To protect the privacy of natural persons. {Section 7(2)(a)}.
4.	Publicity prior to successful prosecution of the individuals named would be contrary to the laws of natural justice and may constitute contempt of court. {Section 48(1)(b)}.
5.	To protect information which is the subject to an obligation of confidence, the publication of such information would be likely to prejudice the supply of information from the same source and it is in the public interest that such information should continue to be supplied. {Section 7(2)(c)(i)}.
6.	In order to maintain legal professional privilege. {Section 2(g)}.
7.	To enable the council to carry on without prejudice or disadvantage, negotiations {Section 7(2)(i)}.

Resolution to allow members of the public to remain

If the council/committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

"That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note:

Every resolution to exclude the public shall be put at a time when the meeting is open to the public.